

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs. Case No. _____

(First, Middle and Last name) DEFENDANT

PETITION TO SEAL MISDEMEANORS UNDER ACT 1460 OF 2013;
A.C.A.16-90-1401, Et. Seq.

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

Possession of a controlled or counterfeit substance, second degree, with an extended statutory description that materially exceeds one line

in violation of A.C.A. § _____

2. The Defendant either pled guilty or nolo contendere or was found
guilty of the offense(s) of:

in violation of A.C.A. § _____
on the _____ day of _____, _____.

3. The Defendant has completed his or her sentence for the
misdemeanor offense.
4. Defendant has paid all court costs unless payment has been
excused by the Court.
5. Defendant has repaid all Court ordered restitution.

6. Defendant has paid all driver's license suspension reinstatement fees and completed all driver's license reinstatement requirements if Petitioner's drivers license was suspended as a result of this plea or conviction.
7. ☐ Defendant has completed all of these requirements and the conviction was not for one of the named misdemeanors listed in A.C.A. § 16-90-1405(b)(1); or
☐ It has been at least five (5) years since Defendant completed his or her sentence if the conviction was for one of the named misdemeanors listed in A.C.A. § 16-90-1405(b)(1); or
☐ It has been at least ninety (90) days since the Court denied a Petition to Seal for a conviction that is not for one of the named misdemeanors listed in A.C.A. § 16-90-1405(b)(1); or
☐ It has been at least one (1) year since the Court denied a Petition to Seal for a conviction that is for one of the named misdemeanors listed in A.C.A. § 16-90-1405(b)(1).
8. The Defendant was either not a holder of a commercial driver's license at the time of conviction or if he or she did hold a commercial driver's license at the time of conviction, the conviction was not for a traffic offense.
9. ☐ Defendant has no pending felony charges in any state or federal court; or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows: _____

10. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq)

11. Defendant requests the Court enter a finding that he or she has been rehabilitated.

12. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III,
prays this Court enter an Order Sealing the above referenced
misdemeanor conviction(s) pursuant to A.C.A. §16-90-1405.

12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

City: Unincorporated Township of Long Hollow Crossing

State: XX Zip code: 01234-9999

Defendant's Address

Defendant's Signature

Date

VERIFICATION

STATE OF ARKANSAS

COUNTY OF _____

Comes the Petitioner, _____, under oath and states that the foregoing Petition is true and correct to the best of my knowledge and belief.

Petitioner

Subscribed and sworn to before me on this _____
, day of _____, 20____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB 1991-04-17 _____

FBI No. (if known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's
Attorney

Date